

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 09/28/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN
DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER
NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

[https://contracosta-courts-
ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWIJCdHIdz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWIJCdHIdz09)

Meeting ID: 161 108 5023
Passcode: 869677

Courtroom Clerk's session

1. 10:00 AM CASE NUMBER: MSC18-01854
CASE NAME: CHIOK VS NUSHAKE ROOFING
JURY TRIAL 5 DAYS
FILED BY:
TENTATIVE RULING:

Pursuant to the Court's Order entered September 15, 2026, the jury trial has been **VACATED** and a Case Management Conference and trial-setting conference is set for October 6, 2026, 8:30 am in Department 34.

2. 9:00 AM CASE NUMBER: C24-01622
CASE NAME: CHRISTOPHER JARZYNSKA VS. TATILA DOWNING

FILED BY:

TENTATIVE RULING:

Plaintiff Jarzynka's motion for summary adjudication as to the partition cause of action is **GRANTED IN PART**. The Court enters an interlocutory judgment finding that Plaintiff and Defendant each own 50 percent of the property on Caitlin Court and that Plaintiff has a right to partition, subject to the buyout process in the Partition of Real Property Act. The parties shall follow the procedures in the Partition of Real Property Act, including redoing the buyout process now that the ownership interests have been determined.

MSA procedure

A plaintiff may move for summary judgment or adjudication if plaintiff contends there is "no defense to the action", that the papers show "there is no triable issue of material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(a)(1) and (c).) A plaintiff meets his burden on summary judgment if plaintiff " 'has proved each element of the cause of action entitling' him 'to judgment on that cause of action.' " (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 849.) A motion for summary adjudication under Code of Civil Procedure section 437c(f)(1) can be granted only "if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty." (*See Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 251.)

"Plaintiff's *initial* burden of proof in moving for summary judgment, however, did not include disproving any affirmative defenses asserted by defendants. ... Code of Civil Procedure section 437c, subdivision (p)(1) provides a plaintiff meets the burden of showing there is no defense to a cause of action 'if that party has proved each element of the cause of action.' Upon meeting that burden, the burden shifts to the defendant 'to show that a triable issue of one or more material facts exists as to that cause of action *or a defense thereto.*' [Citation.]" (*Oldcastle Precast, Inc. v. Lumbermens Mutual Casualty Co.* (2009) 170 Cal.App.4th 554, 564.)

Plaintiff's Motion

Plaintiff seeks summary adjudication of his partition cause of action for the Caitlin Court property.

A co-owner of property has an absolute right to partition unless barred by a valid waiver.